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## Taranaki VTM decision shows the Fast-track Act can, surprisingly, work

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“The fear has been that the Fast-track Approvals Act would approve every application regardless of its environmental impacts. The draft decision on the Trans-Tasman Resources offshore mining project shows that’s not the case,” said EDS Chief Executive Gary Taylor.

“Far from being “embarrassing” as suggested by a mining industry spokesperson, the decision indicates that the Act can work and that even big projects that don’t meet acceptable environmental thresholds and that overstate their benefits, will get refused consent by expert panels. That’s how the proportionality test of section 85 of the Act is supposed to work (and is consistent with what EDS submitted to the Panel).

“It’s worth remembering that originally the idea was that Ministers would make these decisions. A reading of the draft, which runs to over 400 pages, impresses with the degree of analysis and care taken by the independent Panel that was set up to consider the project. It is a robust, forensic consideration that reflects the maturity of our resource management

system and the expert professionals in it. It has a thoroughness that would not be evident if the decisions were political ones.

“Does the decision constitute a precedent? Not in the strict legal sense because each project has its own Panel and they are not bound by previous decisions. But what it does show is that even big, complex projects are not going to get an automatic pass card.

“For those concerned about another big mining project, the massive opencast mine near Cromwell, that will be encouraging. Approval of the Santana mine is not a *fait accompli*. The fact that we have a larger panel (seven) and a longer time frame than TTR, indicates that there will indeed be a very thorough inquiry.

“Surprisingly then, the Fast-track Act can work, notwithstanding its weak environmental thresholds. Bad projects can get refused. While the TTR decision is a draft, it so comprehensively rejects the applicant’s contentions on multiple counts that it’s hard to see that being reversed when the final decision is released.

“New Zealand is then not a third world country where offshore miners can come in and demand consent for any harmful activity. We have standards,” Mr Taylor concluded.

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